

conclusory because it does not state *what injuries* he exhibited or *what behavioral or emotional signs* he displayed that indicated a need for immediate medical care.

“When a complaint complies with the fact-pleading requirement of section 425.10, subdivision (a)(1), [t]he existence of a legal right in an abstract form is never alleged by the plaintiff; but, instead thereof, the facts from which that right arises are set forth, and the right itself is inferred therefrom.” (*Davaloo v. State Farm Ins. Co.* (2005) 135 Cal.App.4th 409, 415, internal quotations omitted.) Here, Plaintiff has not set forth sufficient facts from which the legal right may be inferred. Further, this is a statutory cause of action based on Government Code section 845.6, which means that Plaintiff should plead the facts with particularity. (*Covenant Care, Inc. v. Super. Ct.* (2004) 32 Cal.4th 771, 790 [California Supreme Court describing the “general rule that statutory causes of action must be pleaded with particularity”].)

The Court finds that Plaintiff has not properly pled facts sufficient to show that Plaintiff suffered a serious and obvious medical condition requiring immediate care under Government Code section 845.6. The Court is not saying that if Plaintiff adds these facts to his allegations, he will state a claim, but the Court cannot determine whether he has stated a claim without facts being pled instead of generic and broad assertions. Additionally, without knowing the serious and obvious medical condition(s) requiring immediate care, the Court cannot properly evaluate or assess whether Section 340.1 would or would not apply. The Court will sustain Defendant’s demurrer to this cause of action based on Plaintiff’s failure to plead sufficient facts to constitute a cause of action based on Government Code section 845.6.

Leave to Amend

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) The Court will grant Plaintiff leave to amend.

Ruling

Based on the analysis above, the Court **SUSTAINS** Defendant’s demurrer to Plaintiff’s Complaint, in full, with leave to amend. Plaintiff may file and serve an amended complaint within 20 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

10. 9:00 AM CASE NUMBER: C26-00282
CASE NAME: BREONNA WILLIAMS VS. SHONTELL WILLIAMS
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS COMPLAINT**
FILED BY: WILLIAMS, SHONTELL
TENTATIVE RULING:

Before the Court is a motion by defendants John Stewart Company and Shontell Williams to strike portions of Plaintiff's complaint. For the reasons set forth, the motion is **GRANTED IN PART** and **DENIED IN PART**, as detailed below.

Background

Plaintiff alleges she was a residential tenant at the property located at 2833 Martin Luther King Jr. Avenue in Richmond (the "Property") for approximately two years from November 2023 until

December 11, 2025. (Compl. ¶ 10.) She alleges that defendant John Stewart Company (the "Company") is the landlord and a property manager and that defendant Shontell Williams is a property manager of the Property. (Compl. ¶¶ 2, 3, 11.)

Plaintiff alleges "substantial defective conditions" existed at the Property while she was a tenant for which Defendants "received notices of violations from the City of Richmond Departments of Building Inspection and Health that the unit was illegal, dangerous, and uninhabitable." (Compl. ¶ 13.) She provides additional allegations of the ways in which Defendants allowed the Property not to conform to applicable law for a residential tenant property, which she alleges was done by Defendants "knowingly and negligently." (Compl. ¶¶ 13, 27, 44, 51.)

Plaintiff alleges eight causes of action, including negligence, breach of the implied warranty of habitability, breach of the implied warranty of quiet enjoyment, breach of contract, intentional infliction of emotional distress ("IIED") (4th C/A), breach of contract, breach of the implied covenant of good faith and fair dealing, private nuisance (7th C/A), and violation of the Richmond Municipal Code ("RMC") section 11.103 (8th C/A). In connection with the 4th and 7th C/As for IIED and private nuisance, Plaintiff alleges a claim for punitive damages. (Compl. ¶¶ 30, 49 and Prayer ¶ 5.) As to the claim for violation of the RMC, Plaintiff seeks treble damages. (Compl. ¶ 53 and Prayer ¶ 6.)

Legal Standards Applicable to Motion to Strike Punitive Damages

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. §§ 436(a) and (b).) An "irrelevant" matter includes allegations not essential to the claim or defense, as well as allegations "neither pertinent to nor supported by an otherwise sufficient claim or defense." (Code Civ. Proc. § 431.10 (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice, and the Court accepts the factual allegations of the complaint as true, but not " 'conclusions of fact or law, opinions, speculation, or allegations contrary to law or judicially noticed facts.' [Citation omitted.]" (Code Civ. Proc. § 437; *Velez v. Smith* (2006) 142 Cal.App.4th 1154, 1163.) (See also *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436(a); *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.)

Punitive damages may be awarded in "an action for the breach of an obligation not arising from contract" where Plaintiff proves the "defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) "Malice" is defined as conduct "intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1) [emphasis added].) "Oppression" is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).)

Civil Code section 3294 was amended in 1987 to add the requirement that conduct be "despicable" to support an award of punitive damages based on malice or oppression, unless the complaint alleges an intent to injure the plaintiff. (See *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211; Stats.1987, c. 1498, § 5, p. 5780.) The California Supreme Court explained that adding "despicable" was a "new substantive limitation" on punitive damages. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) Addressing the meaning of "despicable," the Court stated that "the adjective 'despicable' is a powerful term that refers to circumstances that are 'base,' 'vile,' or 'contemptible.'" (4 Oxford English Dict. (2d ed. 1989) p. 529.) As amended to include this word, the statute plainly indicates that absent

an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. The additional component of 'despicable conduct' must be found." (*Id.*) (*See also Lackner v. North* (2006) 135 Cal.App.4th 1188, 1209 ["The adjective 'despicable' connotes conduct that is ' . . . so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.' [Citations, internal quotations omitted.]"].)

To support claim for punitive damages, "[n]ot only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) A motion to strike is properly granted when a complaint fails to allege facts to state a *prima facie* claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.) As a statutory claim, it must be pled with specificity. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.) Alleging an intentional tort alone is not enough to support a claim for punitive damages. (*Grieves, supra*, 157 Cal.App.3d at 166.) Conclusory allegations parroting the language of the statute are not enough for a punitive damages claim to survive a motion to strike. (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

Defendants cite, among other decisions, *Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269. The case involved a bad faith claim against an insurance company for bad faith denial of a claim under the plaintiffs' homeowners insurance policy, in which the Court reversed an award of punitive damages after a jury trial based on insufficient financial evidence and improper instructions to the jury on the distinction between conduct sufficient for a bad faith claim and the conduct required to impose punitive damages. (*Id.* at 1285-1286.) With respect to the standards for awarding punitive damages, the Court reiterates the characterization of the conduct required for punitive damages to be imposed described in a number of the decisions cited above. (*Id.* at 1286-1287 [also citing decision characterizing the necessary conduct as " 'having the character of outrage frequently associated with crime.' [Citation omitted.]"].)

When a claim for punitive damages is alleged against a corporate entity, additional allegations are required. "An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code § 3294(b).)

Analysis

A. Untimeliness of Motion

A motion to strike any pleading must be filed "within the time allowed to respond to a pleading." (Code Civ. Proc. § 435(b)(1).) Generally, the deadline for service of pleadings is 30 days after service of the summons and complaint. (Code Civ. Proc. § 412.20(a)(3).) When the summons and complaint are served by subservice under Code of Civil Procedure section 415.20, as was the case for both defendants the Company and Shontell Williams, service is not deemed to be complete until 10 days after copies of the summons and complaint are mailed. (Code Civ. Proc. §§ 415.20(a) and (b); Purtell Decl. Exhs. A and B.)

The proofs of service show subservice and mailing of the summons and complaint on the Company on

February 5, 2026 and on Shontell Williams on February 10, 2026. (Purtell Decl. Exhs. A and B.) Responsive pleadings were therefore due from the Company on March 17, 2026 and from Shontell Williams on March 23, 2026 (March 22, 2026 was a Sunday). The defendants filed their motion on April 2, 2026, approximately one to two weeks after the response deadline and within the April 3, 2026 deadline set by Plaintiff's counsel for them to file an answer. (Purtell Decl. ¶¶ 6-7, Exh. C.)

The Court agrees the motion to strike was untimely without considering the conditional deadline extension offered by Plaintiff. Nevertheless, the Court has the discretion to consider an untimely motion to strike. (*Jackson v. Doe* (2011) 192 Cal.App.4th 742, 750; Code Civ. Proc. § 436(a) [Court may "at any time in its discretion" strike portions of a pleading].) Plaintiff has filed a detailed opposition to the motion on the merits and has requested leave to amend if the Court finds the allegations insufficient. The Court finds it appropriate in the interests of justice and judicial efficiency to exercise its discretion to rule on the merits of the motion.

B. Sufficiency of Allegations of the Complaint to State A Claim for Punitive Damages Generally as to Fourth and Seventh Causes of Action

Plaintiff only seeks punitive damages in connection with the fourth and seventh causes of action. Defendants do not argue that punitive damages are not available in an IIED claim, which alleges an intentional tort, or for a private nuisance if sufficient facts meeting the standards of Civil Code section 3294 are alleged. Rather, Defendants contend that Plaintiff's Complaint fails to allege facts that either of the Defendants acted with malice, oppression, or fraud.

In each of paragraphs 27 and 44 on which Plaintiff's IIED and private nuisance claims are based, Plaintiff alleges that Defendants "knowingly and negligently" failed or refused to do a number of things in conformity with applicable law or in compliance with applicable codes, including (1) provide adequate heat, (2) maintain a structurally compliant Property, and (3) provide proper electrical components, plumbing, windows, ventilation, appliances, and ingress and egress. (Compl. ¶¶ 27, 44.) She alleges Defendants "knowingly and negligently" exposed her to "unsanitary odors" and failed to remediate the odors and water infiltration. (Compl. ¶¶ 27, 44.) She also alleges Defendants "knowingly and negligently" illegally hired unlicensed contractors to perform "dangerous and unsafe work." (Compl. ¶¶ 27, 44.) She alleges Defendants "knowingly and negligently exposed Plaintiff to unsafe, illegal, and severe levels of mold" and that Defendants "knowingly and negligently refused to remediate mold" from the Property "despite repeated knowledge that such was adversely affecting Plaintiff's health." (Compl. ¶¶ 27, 44.) The timing of these occurrences is bounded by her allegation regarding the period of her tenancy from November 2023 to December 2025. (Compl. ¶ 10.) In addition, in paragraph 13, incorporated by reference into the fourth and seventh causes of action (Compl. ¶¶ 26, 42.) Plaintiff alleges that Defendants received notices of violations of the Richmond Building and Health Code during her tenancy. She alleges the unit was cited as being "illegal, dangerous, and uninhabitable," and she alleges illegal work was performed without permits. (Compl. ¶ 13.)

Plaintiff's allegations do not merely plead the general language of the statute to support her claim for punitive damages. She alleges a series of facts regarding defects in her unit that violate the habitability requirements, that Defendants allowed the defects and failed to remediate them "knowingly," and that Defendants received notices from Richmond citing the Property where she was residing as a tenant as illegal and uninhabitable. (Compl. ¶ 13.) She alleges Defendants knew of serious mold levels in the Property that were causing her adverse health effects, knew of her adverse health issues caused by the mold, and failed or refused to remediate the mold issues. (Compl. ¶¶ 27,

44.) These are specific facts, not just factual conclusions. Accepting as true the long laundry list of defects in the Property Defendants allegedly "knowingly" allowed to exist and failed to remediate property, despite being cited for uninhabitability by the Richmond Departments of Building Inspection and Health, the facts are sufficient to allege the "despicable" conduct in willful and conscious disregard of Plaintiff's rights and safety to state a claim for punitive damages, at least as to defendant Shontell Williams. (Civ. Code §§ 3294(c)(1) and (2).)

C. Lack of Allegations to Support Punitive Damages Against the Company Based on Acts or Omissions of Its Employees under Civil Code Section 3294(b)

Plaintiff does not allege that Shontell Williams was an employee of the Company, only that she managed the Property. (Compl. ¶¶ 3 and 11.) Plaintiff does not allege any individual identified employee of the Company had knowledge of the alleged defects or lack of maintenance or correction of defects at the Property. Even if Shontell Williams by implication is employed by the Company, Plaintiff does not allege any facts stating that any officer, director, or managing agent of the Company either (1) had advance knowledge of "the unfitness of the employee" who committed the alleged wrongful acts or failure to act in addressing Property defects or maintenance, and "employed him or her with a conscious disregard of the rights or safety of others," or (2) any officer, director, or managing agent of the Company authorized or ratified the wrongful conduct of the employee(s) of the Company with respect to the wrongful acts and omissions generally alleged above in paragraphs 13, 27, and 44. (*Id.*)

In her opposition, Plaintiff does not address Civil Code section 3294(b) at all. She does not argue that her Complaint includes the allegations required to state a claim for punitive damages against the Company as a corporation pursuant to Civil Code section 3294. The Court's review of the Complaint indicates the Complaint does not include the factual allegations necessary to state a claim for punitive damages against the Company under Civil Code section 3294, though Plaintiff may be able to allege such facts if given leave to amend.

D. Sufficiency of Allegations to State A Claim for Treble Damages under RMC Section 11.103

Defendants' motion asks the Court to strike Plaintiff's claim for treble damages under RMC section 11.103 in the eighth cause of action, but Defendants do not address the ordinance in their memorandum or provide authority supporting striking the claim. Defendants generally lump the claim for treble damages under the Richmond ordinance into the claim for punitive damages in the introductory portions of the memorandum. Defendants do not cite or quote any provisions of the ordinance or other authority regarding the standards for imposing treble damages under RMC section 11.103. They cite nothing in the RMC or other authority that would allow the Court to conclude that the standards for imposing treble damages under RMC section 11.103 are the same as the standards for punitive damages under the Civil Code. Defendants' motion to strike the provisions of the Complaint seeking treble damages under RMC section 11.103 is therefore unsupported and **DENIED** on that ground.

Conclusion and Ruling

For the reasons stated above, the Court **GRANTS** the motion to strike by Defendant John Stewart Company as to the following: (a) the prayer for punitive damages in paragraph 30 ("Plaintiff pray for punitive damages pursuant to *California Code of Civil Procedure [sic] § 3294*"), (b) the prayer for punitive damages in paragraph 49 ("Plaintiff further pray for punitive damages pursuant to *California*

Code of Civil Procedure [sic] § 3294 and *Hassoldt v. Patrick Media Group, Inc.* (2000) 84 Cal.App.4th 153"), and (c) paragraph 5 of the Prayer of the Complaint ("For the Causes of Action for Intentional Infliction of Emotional Distress and Private Nuisance, punitive damages pursuant to *California Code of Civil Procedure [sic] § 3294*"). Those provisions of the Complaint shall be deemed properly asserted only against defendant Shontell Williams. The Court will **GRANT** Plaintiff **LEAVE TO AMEND** to attempt to allege facts to state a claim for punitive damages against the Company under Civil Code section 3294(b). The Court **DENIES** the motion to strike by defendant Shontell Williams as to those portions of the Complaint.

The Court **DENIES** the motion to strike by both defendants John Stewart Company and Shontell Williams directed to paragraph 53 and paragraph 6 of the Prayer of the Complaint.

11. 9:00 AM CASE NUMBER: C26-00564

**CASE NAME: CATERPILLAR FINANCIAL SERVICES CORPORATION, VS. CHRIS CHRYSSIKOS
HEARING IN RE: APPLICATION FOR WRIT OF POSSESSION AFTER HEARING RE: CHRIS ROY
CHRYSSIKOS**

FILED BY: CATERPILLAR FINANCIAL SERVICES CORPORATION,

TENTATIVE RULING:

The unopposed Application for Writ of Possession is **GRANTED**. Moving party to appear in connection with review and entry of order(s).

12. 9:00 AM CASE NUMBER: L25-02197

**CASE NAME: ONEMAIN FINANCIAL, LLC ONEMAIN FINANCIAL GROUP, LLC VS. HEISELL CENTENO
MURILLO**

HEARING IN RE: MOTION TO PAY IN INSTALLMENTS

FILED BY:

TENTATIVE RULING:

Defendant and judgment debtor Heisell Centeno Murillo ("Judgment Debtor") filed a motion to pay judgment in installments on May 4, 2026 (the "Motion to Pay Installments"). The Motion to Pay Installments was set for hearing on August 3, 2026. The motion is opposed.

Background

A default judgment was entered against Judgment Debtor on October 16, 2025, awarding \$10,981.92 (the "Judgment Amount") to plaintiff and judgment creditor OneMain Financial Group, LLC ("Judgment Creditor"). See Judgment filed October 16, 2025. On May 4, 2026, Judgment Debtor filed the Motion to Pay Installments, seeking to pay the Judgment Amount in \$250 monthly installments, payable on the 10th of each month. See Declaration as part of Motion to Pay Installments ("Murillo Declaration"), ¶13. No proof of service is attached to the Motion to Pay Installments or filed separately.

Judgment Creditor filed an opposition on July 21, 2026 (the "Opposition"). Judgment Creditor acknowledges receiving a copy of the Motion to Pay Installments on May 20, 2026. Opposition, p. 1.

Analysis